

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

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JAMEL DAVIS,

Plaintiff

- against -

Index No. _____
Purchased _____
Plaintiff designates Bronx
County as the place of trial

The basis of the venue is
where the tort arose

**CITY OF NEW YORK,
EDISON R. GUTIERREZ (TAX # 932763),
MARK CARLINO (TAX # 936306)
PO EDMONDS (TAX # 950369)
PO JOHN DOES 1-5**

SUMMONS

Defendants.
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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
March 27, 2024



ERIC D. LEVY, ESQ.
Attorney for Plaintiff
930 Grand Concourse, Suite 1e
Bronx, New York 10451
(646) 755-8020

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

-----X
JAMEL DAVIS,

Plaintiff,**Index No.
Complaint****- against -**

**CITY OF NEW YORK,
EDISON R. GUTIERREZ (TAX # 932763),
MARK CARLINO (TAX # 936306)
PO EDMONDS (TAX # 950369)
PO JOHN DOES 1-5**

Defendants.

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Plaintiff JAMEL DAVIS, by his attorney ERIC D. LEVY, ESQ., principal,
complaining of the Defendants, respectfully shows to this Court and alleges the following
upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff JAMEL DAVIS ("MR. DAVIS") was a resident of BRONX County, City and State of New York.
2. At all times hereinafter mentioned, Defendant CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, Defendants EDISON R. GUTIERREZ (TAX # 932763), MARK CARLINO (TAX # 936306), PO EDMONDS (TAX # 950369) and PO JOHN DOES 1-5, ("GUTIERREZ, CARLINO, EDMONDS and DOES 1-5") were and still are police officers employed by the Defendant CITY and the NEW YORK

CITY POLICE DEPARTMENT (“NYPD”).

4. On and prior to December 31, 2022, GUTIERREZ was employed by Defendants CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

5. On and prior to December 31, 2022, CARLINO was employed by Defendants CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

6. The actions of GUTIERREZ described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendants CITY and NYPD.

7. The actions of CARLINO described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendants CITY and NYPD.

8. The actions of EDMONDS described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendants CITY and NYPD.

9. The actions of DOES 1-5 described herein were performed within the scope of their employment and authority and while they acted as an agent, servant and employee of Defendants CITY and NYPD.

BACKGROUND

10. On or about December 31, 2022, GUTIERREZ, CARLINO, and DOES 1-5 acting as agent, servant and employee of Defendant CITY and NYPD, in the vicinity of Metcalf Ave. and Seward Ave., Bronx, on December 31, 2022, at approximately 9:30 p.m. Mr. Davis was driving his car when he was pulled over by Defendants, driving an unmarked vehicle, without just cause or provocation, intentionally and falsely accused MR. DAVIS of possessing illegal contraband and unlawfully searched his vehicle, ultimately finding nothing illegal.

11. On or about December 31, 2022, Defendants, their agents, servants and/or employees, intentionally placed MR. DAVIS under arrest without just cause or provocation and with reckless and negligent disregard for the truth. After his arrest on December 31, 2022, MR. DAVIS was detained by Defendants for over one hour.

12. On or about January 7, 2023, DOES 1-5, in the vicinity of White Plains Rd. and Story Ave., Bronx, on January 7, 2023, at approximately 1:40 p.m. Mr. Davis was driving his car when he was pulled over uniformed police officers driving an unmarked vehicle acting as agent, servant and employee of Defendant CITY and NYPD, without just cause or provocation, intentionally and falsely detained MR. DAVIS after stopping the car he was driving.

13. On or about January 7, 2023, Defendants, their agents, servants and/or employees, intentionally placed MR. DAVIS under arrest without just cause or provocation and with reckless and negligent disregard for the truth. After his arrest on January 7, 2023, MR. DAVIS was detained by Defendants for over 40 minutes.

14. On or about January 13, 2023, in front of 1741 Randall Ave., Bronx, on January 13, 2023, at approximately 5:45 p.m. Mr. Davis was sitting in his car, in a legal

parking space, when a black police van and a blue and white police van blocked him in and after waiting for almost 40 minutes for one of the police vehicles to move, Mr. Davis lowered his window to find out if one of the vehicles could move, EDMONDS, acting as agent, servant and employee of Defendant CITY and NYPD, without just cause or provocation, intentionally and falsely accused MR. DAVIS of unlawfully idling the engine of his car.

15. On or about January 13, 2023, Defendants, their agents, servants and/or employees, intentionally placed MR. DAVIS under arrest without just cause or provocation and with reckless and negligent disregard for the truth. After his arrest on January 13, 2023, MR. DAVIS was detained by Defendants for over one hour.

16. On or about February 1, 2023, a criminal complaint was issued at the directive of Defendants, under docket No. 2023SX001445, and a criminal action against MR. DAVIS was commenced.

17. As a result of the treatment of MR. DAVIS by the Defendants, MR. DAVIS was denied liberty by being falsely arrested for over three hours.

18. MR. DAVIS suffered emotional injuries due to the conduct of the Defendants. As a result of being falsely arrested and detained for over three hours, MR. DAVIS suffered humiliation, fear for his safety and other emotional distress; on March 7, 2023, all charges against MR. DAVIS were dismissed and the records sealed.

PROCEDURAL POSTURE

19. On March 9, 2023, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the

Defendant of the nature, place, time and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

20. More than thirty days have elapsed since service of said notice, and Defendant CITY has failed to pay or adjust the claim.

21. This action has been commenced within one year and ninety days after the cause of actions of Plaintiff accrued.

FIRST CAUSE OF ACTION: FALSE ARREST

22. Paragraphs 1-21 are incorporated by reference as fully set forth herein.

23. On December 31, 2022, in the vicinity of Metcalf Ave. and Seward Ave., Bronx, on December 31, 2022, at approximately 9:30 p.m., in Bronx County, Defendant GUTIERREZ, CARLINO AND DOES 1-5 wrongfully touched, grabbed, and seized MR. DAVIS, in an excessive manner about his person, causing MR. DAVIS physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch Plaintiff, denied MR. DAVIS due process, and therefore his arrest was not based on probable cause; he also was aware of his arrest and confinement as described in paragraphs 1-21, and he did not consent to that arrest or confinement, nor was it privileged by law.

24. As a result of being falsely arrested by the Defendants, MR. DAVIS sustained multiple injuries. He was denied liberty and the ability to enjoy life. He also suffered emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

SECOND CAUSE OF ACTION: FALSE ARREST

25. Paragraphs 1-24 are incorporated by reference as fully set forth herein.

26. On or about January 7, 2023, DOES 1-5, in the vicinity of White Plains Rd. and Story Ave., Bronx, at approximately 1:40 p.m. Mr. Davis was driving his car when he was pulled over uniformed police officers driving an unmarked vehicle in Bronx County, Defendant DOES 1-5 wrongfully touched, grabbed, and seized MR. DAVIS, in an excessive manner about his person, causing MR. DAVIS physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch Plaintiff, denied MR. DAVIS due process, and therefore his arrest was not based on probable cause; he also was aware of his arrest and confinement as described in paragraphs 1-25, and he did not consent to that arrest or confinement, nor was it privileged by law.

27. As a result of being falsely arrested by the Defendants, MR. DAVIS sustained multiple injuries. He was denied liberty and the ability to enjoy life. He also suffered emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

THIRD CAUSE OF ACTION: FALSE ARREST

28. Paragraphs 1-27 are incorporated by reference as fully set forth herein.

29. On or about January 13, 2023, in front of 1741 Randall Ave., Bronx, on January 13, 2023, at approximately 5:45 p.m. Mr. Davis was sitting in his car, in a legal parking space, when a black police van and a blue and white police van blocked his car from moving, in Bronx County, Defendant EDMONDS wrongfully touched, grabbed, and seized MR. DAVIS, in an excessive manner about his person, causing MR. DAVIS physical pain and mental suffering. At no time did the Defendants have legal cause to

grab, seize or touch Plaintiff, denied MR. DAVIS due process, and therefore his arrest was not based on probable cause; he also was aware of his arrest and confinement as described in paragraphs 1-28, and he did not consent to that arrest or confinement, nor was it privileged by law.

30. As a result of being falsely arrested by the Defendants, MR. DAVIS sustained multiple injuries. He was denied liberty and the ability to enjoy life. He also suffered emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: ABUSE OF PROCESS

31. Paragraphs 1-30 are incorporated by reference as though fully set forth herein.

32. In arresting on December 31, 2022, January 7, 2023, and January 13, 2023, MR. DAVIS, defendants GUTIERREZ, CARLINO, EDMONDS AND DOES 1=5, acting in their capacity as an agent, servant and employee of Defendants CITY and NYPD, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

33. In arresting and prosecuting MR. DAVIS, defendants GUTIERREZ, CARLINO, EDMONDS AND DOES 1=5, acting in their capacity as the agent, servant and employee of Defendants CITY and NYPD, sought either a detriment to MR. DAVIS or a collateral advantage to the Defendants that is outside of the legitimate ends of making an arrest; specifically Defendants arrested MR. DAVIS for the purpose of inflating crime statistics and for the opportunity to earn over-time pay.

34. As a result of the abuse of process by the Defendants, MR. DAVIS

sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

FIFTH CAUSE OF ACTION

35. Paragraphs 1-34 are incorporated by reference as though fully set forth herein.

36. Defendant GUTIERREZ was at all times relevant, a duly appointed and acting officer of the City of New York Police Department.

37. Defendant CARLINO was at all times relevant, a duly appointed and acting officer of the City of New York Police Department.

38. Defendant EDMONDS was at all times relevant, a duly appointed and acting officer of the City of New York Police Department.

39. At all times mentioned herein, GUTIERREZ, CARLINO AND EDMONDS were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

40. Plaintiff is and at all times relevant herein, a citizen of the United States and brings this cause of action pursuant to 42 United States Code, section 1983 and 42 United States Code, section 1988.

41. Defendant CITY is a municipality duly incorporated under the laws of the State of New York.

42. On or about December 31, 2022, the Defendants GUTIERREZ and

CARLINO , armed police, while effectuating the seizure of the Plaintiff, did search, seize, assault and grab the person of Plaintiff without a court authorized arrest warrant. They did physically seize the person of Plaintiff during the arrest process in an unlawful and excessive manner. Plaintiff was falsely arrested and maliciously prosecuted without the Defendants possessing probable cause.

43. On or about January 13, 2023, the Defendant EDMONDS, armed police, while effectuating the seizure of the Plaintiff, did search, seize, assault and grab the person of Plaintiff without a court authorized arrest warrant. They did physically seize the person of Plaintiff during the arrest process in an unlawful and excessive manner. Plaintiff was falsely arrested and maliciously prosecuted without the Defendants possessing probable cause.

44. The above actions of the Defendants resulted in Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution;
- f. Freedom from the use of excessive force during the arrest process.

45. The Defendants subjected Plaintiff to such deprivations, either in a

malicious or reckless disregard of Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United State Constitution.

46. The direct and proximate result of the Defendants' acts are that Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, New York
March 27, 2024

Yours, etc.,



ERIC D. LEVY, ESQ.

Attorney for Plaintiff
930 Grand Concourse, Suite 1E
Bronx, NY 10451
646-755-8020

VERIFICATION

ERIC D. LEVY, affirms the following statements to be true under the penalties of perjury, pursuant to Rule 2016 of the CPLR:

I have read the foregoing SUMMONS AND COMPLAINT and know the contents thereof based upon a review of the file maintained in my office; that the same is true to my own knowledge except as to those matters therein stated to be alleged upon information and belief, and as to those matters, I believe them to be true.

I execute this Verification since I maintain my office in Bronx County and JAMEL DAVIS, is currently residing outside Bronx County.

Dated: March 27, 2024


Eric D. Levy

CERTIFICATION

I, ERIC D. LEVY, ESQ., certifies, that, to the best of my knowledge, information and belief, the presentation of the paper is not frivolous and, where the paper is an initiating pleading, that the matter was not obtained through illegal conduct or, if it was, that the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing fees and that the matter was not obtained in violation of DR 7-111. (22 N.Y.C.R.R. 130-1.1-a[b]).

ERIC D. LEVY, ESQ.